

(34)

Tentative Ruling

Re: ***Little v. Fresno Community Hospital and Medical Center***
Superior Court Case No. 26CU01249

Hearing Date: August 6, 2026 (Dept. 403)

Motion: Expedited Petition to Approve Compromise of Minor's Claim

Tentative Ruling:

To grant the petition. The court intends to sign the proposed orders. No appearances are necessary.

The court sets a status conference for Wednesday, November 4, 2026 at 3:30 p.m., in Department 501, for confirmation of deposit of the minor's funds into a blocked account. If Petitioner files the Acknowledgment of Receipt of Order and Funds for Deposit in Blocked Account (MC-356) at least five court days before the hearing, the status conference will come off calendar.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on August 5, 2026.
(Judge's initials) (Date)

(34)

Tentative Ruling

Re: ***In re Diego Bedolla***
Superior Court Case No. 26CECG01379

Hearing Date: August 6, 2026 (Dept. 403)

Motion: Expedited Petition to Compromise Claim of Minor

Tentative Ruling:

To deny the petition, without prejudice, for the reasons explained below. Petitioner must file an amended petition, with appropriate supporting papers and proposed orders.

In the event that oral argument is requested the minor is excused from appearing.

Explanation:

According to the petition, the minor has fully recovered from injuries received in a car collision and is to receive a gross settlement of \$15,000 with the balance of the settlement after medical costs and attorney fees to be deposited in a blocked account.

The Petition at Item 9a indicates that the minor has recovered completely from his injuries. Counsel has provided a supplemental declaration and includes a recent medical record dated July 27, 2026 indicating the minor is continuing to experience headaches and dizziness. (Yahoudai Decl., Ex. 1.) This additional evidence does not support the Petition's representation that the injuries have resolved. Counsel in his declaration urges the court to approve the petition on the basis that the policy limits have been tendered and regardless of the status of the minor's injuries there is no additional money to be recovered. (*Id.*, ¶¶ 3, 6.)

The court understands the reality of the exhaustion of policy limits limiting the recovery for the injuries. However, this does not excuse the inconsistencies between the representation in the petition that the minor has recovered from his injuries and the evidence indicating he has not. If the minor's injuries have not resolved the Petition should reflect this condition and whether the residual headaches and dizziness are expected to be temporary or permanent.

As a result of these inconsistencies, the petition is denied, without prejudice.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on August 5, 2026.
(Judge's initials) (Date)